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OFFUTT AIR FORCE BASE

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Security

MOTOR VEHICLE TRAFFIC SUPERVISION

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This instruction implements and extends the guidance of AFI 31-218(I), *Motor Vehicle Traffic Supervision.* This instruction assigns responsibilities and establishes procedures for motor vehicle traffic supervision applicable to all motor vehicle traffic matters on Offutt AFB. This includes, but is not limited to, granting, suspending, or revoking the privilege to operate a privately owned vehicle (POV); administration of driver performance records; driver improvement programs; police traffic supervision; and off-installation traffic activities. This instruction applies to all drivers on Offutt Air Force Base, to include the streets of Rising View Housing, the off-base Chapel and 55 FSS areas, Ehrling Bergquist Clinic, and the Base Lake area. For operation of vehicles on the flight line, OAFBI 11-250, *Offutt Airfield Operations*, further applies. All records created as a result of processes prescribed in this publication are maintained IAW AFMAN 33-322, *Records Management and Information Governance Program*, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS), located at **https://www.my.af.mil/afrims/afrims/afrims/rds/rds_series.cfm**. Send comments and suggested improvements using AF Form 847, *Recommend Change of Publication*, through channels to: 55 SFS/MAX, 105 Airman Circle, Offutt AFB NE 68113.

SUMMARY OF CHANGES

This interim change revises OABI 31-218 by (1) updating Attachment 5, Central Violations Bureau Schedule H, Offutt AFB, with an updated list of United States District Court for the District of Nebraska Schedule H violations and collateral forfeiture amounts, (2) changed overall management authority for the Offutt AFB Parking Warden Program from 55 MSG/CD to the 55 SFS/CC, and (3) clarified issue procedures for offenses listed in the Collateral Forfeiture Schedule (CFS). A margin bar (|) indicates newly revised material.

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Chapter 1

INTRODUCTION

1.1. Program Management. This instruction implements and extends the guidance of AFI 31-218(I), *Motor Vehicle Traffic Supervision.* Furthermore, in accordance with Department of Defense (DoD) Directive 5525.4, *Enforcement of State Traffic Laws on DoD Installation*s and 18 U.S.C. § 13, *The Assimilative Crimes Act*, Offutt AFB assimilates Chapter 60, Motor Vehicles, Nebraska Revised Statutes (NRS) (**https://nebraskalegislature.gov/laws/browse-chapters.php?chapter=60**).

1.1.1. This instruction assigns responsibilities and establishes procedures for motor vehicle traffic supervision applicable to all motor vehicle traffic matters on Offutt AFB. This includes, but is not limited to:

1.1.1.1. Granting, suspending, or revoking the privilege to operate a privately owned vehicle (POV).

1.1.1.2. Administration of driver performance records.

1.1.1.3. Driver improvement programs.

1.1.1.4. Police traffic supervision.

1.1.1.5. Off-installation traffic activities.

1.1.2. This instruction applies to all drivers on Offutt Air Force Base, to include the streets of Rising View Housing, the off-base Chapel and 55 FSS areas, Ehrling Bergquist Clinic, and the Base Lake area.

1.1.3. For operation of vehicles on the flight line, OAFBI 11-250, *Offutt Airfield Operations,* further applies.

1.2. Responsibilities.

1.2.1. Traffic review and planning is delegated to the Mission Support Group Commander (55 MSG/CC). In the absence of the 55 MSG/CC, the Mission Support Group Deputy Commander (55 MSG/CD) will carry-out traffic review and planning responsibilities.

1.2.2. The authority to determine when, where and how to implement random installation entry/exit vehicle checks (IEVCs) is delegated to the 55 MSG/CC.

1.2.3. 55 MSG/CC is designated as the suspension/revocation authority for all traffic actions and violations to include restoration of driving privileges and granting of restricted driving privileges. The Installation Commander further designates the 55 MSG/CC as the administrative hearing authority. The Defense Force Commander (DFC) is the point of contact for matters concerning traffic citation rebuttals and has the authority to void any issued DD Form 1408, *Armed Forces Traffic Ticket*.

1.2.4. 55 MSG/CC will establish a Reserved Parking Board (RPB) to manage parking spots and reserved parking allocations on the installation. Exception: 55 MDG/CC will manage parking spots and reserved parking allocations within the fenced confines of the Ehrling Bergquist Clinic compound.

1.2.5. 55 MSG/CC will appoint an Installation Traffic Safety Coordination Group (TSCG) to assist in the administration of traffic and parking management planning. Members typically include security forces, traffic engineer, safety, medical and legal personnel.

Chapter 2

DRIVING PRIVILEGES

2.1. Driving Privileges. Driving on Offutt AFB is a privilege granted by the Installation Commander. Motor vehicle operators will comply with the laws and instructions governing motor vehicle operation and registration on the installation. Failure to comply with the laws and instructions can result in administrative action, punitive action, or both.

2.1.1. Persons who operate a motor vehicle on the installation must meet the criteria listed in Chapter 3.

2.1.2. In upholding the fundamental tenet from AFI 1-1, *Air Force Standards*, inappropriate slogans, images, or ornamentation on POVs, or materials inside of a POV within plain view to a passerby are not tolerated on Offutt AFB. Materials considered unprofessional or inappropriate include items that emphasize sexual or other inappropriate activity that are detrimental to a professional working environment. For example, lewd bumper stickers or sexually graphic decals or hitch ornamentation could be considered inappropriate.

2.1.2.1. Potential violations will be reported to the individual's chain of command to determine if items are inappropriate or unprofessional. If deemed unprofessional or inappropriate, the slogans, images, or ornamentation must be removed or may be required to be covered as a condition to allow the POV on the installation.

2.1.2.2. Personnel who deliberately or repeatedly violate this policy may be barred from driving a POV on the installation.

2.2. Stopping and Inspecting Personnel or Vehicles.

2.2.1. Installation entry/exit vehicle checks (IEVC) will be conducted as directed by the Installation Commander or delegated authority. The intent is to protect the security of the command and to protect government property. IEVCs are not conducted merely to establish probable cause; inspections ensure the security, military fitness, and good order and discipline of the command, and may include an examination to locate and confiscate unlawful weapons and other contraband. The Installation Commander has delegated the authority to determine when, where and how to implement the checks to the 55 MSG/CC.

2.2.2. On-base traffic stops and inspections of POVs (other than at entry gates and restricted area Entry Control Points [ECPs]) is authorized when there is a reasonable suspicion of criminal activity, or a violation of a traffic regulation, or the installation commander's policy.

2.3. Implied Consent to Blood, Breath or Urine Tests. Drivers give consent to evidential tests for alcohol or other drug content of their blood, breath, and/or urine as a condition to accepting installation driving privileges. This consent applies when lawfully detained, apprehended, or cited for any impaired driving offense committed while driving or in physical control of a motor vehicle on Offutt AFB.

2.4. Implied Consent to Vehicle Impoundment. As a condition to accepting installation driving privileges, drivers agree to reimburse an authorized agency or contractor for the cost of towing, storage, and disposal should a need arise to remove or impound their motor vehicle. Refer to **Chapter 6** for specific information on vehicle towing and impoundment.

2.5. Suspension or Revocation of Driving Privileges. The installation commander or designee (55 MSG/CC) may for cause, or any lawful reason, administratively suspend or revoke driving privileges on the installation. The suspension or revocation of installation driving privileges for lawful reasons unrelated to traffic violations or safe vehicle operation, is not limited or restricted by this regulation.

2.5.1. Suspension. Suspension is the temporary withdrawal of a person's privilege to operate a motor vehicle on the installation for up to 12 months.

2.5.1.1. The Installation Commander and 55 MSG/CC have discretionary authority and may withdraw anyone's authorization to operate a vehicle on the installation, as long as due process is afforded to individuals whose driving privileges are suspended or revoked. A suspension is normally issued pending a formal decision by the Installation Commander or 55 MSG/CC; revocation of driving privileges is the withdrawal of driving privileges after an evaluation of the facts for the incident(s).

2.5.1.2. Driving privileges can be suspended for serious violations or when lesser measures fail to improve a driver's performance. The Installation Commander or 55 MSG/CC may also suspend or revoke licenses for up to 12 months if a driver continually violates installation parking standards, or habitually violates other standards considered non-moving in nature.

2.5.1.3. Driving privileges for POVs and government vehicles (GOV) will be immediately suspended for any driver suspected of an intoxicated driving incident, as described in paragraphs **4.18 - 4.18.5**, pending resolution of the intoxicated driving incident. This applies regardless of the geographic location of an intoxicated driving incident.

2.5.2. Revocation. Revocation is an action taken by the installation commander or designee (55 MSG/CC) to terminate a privilege to operate a motor vehicle on the installation.

2.5.2.1. Driving privileges will be revoked for a period of not less than one year in the following circumstances:

2.5.2.1.1. In the event a vehicle operator refuses (for on- and off-base offenses) to submit to a chemical test of their breath, blood or urine for the presence of alcohol or drugs, the driver's 1-year revocation is effective immediately. If the vehicle operator is currently already under installation suspension/revocation, the revocation will be added onto the existing base suspension/revocation.

2.5.2.1.2. A conviction, non-judicial punishment, or a military or civilian administrative action resulting in the suspension or revocation of a driver's license for intoxicated driving. Official documentation is required as the basis for this type of revocation action.

2.5.2.1.3. When a serious incident involving a motor vehicle occurs and the Installation Commander or 55 MSG/CC determines immediate revocation of driving privileges is required to preserve public safety or the good order and discipline on the installation.

2.5.2.2. Revocations under paragraphs **2.5.2.1.1** and **2.5.2.1.2** will normally be 1-year in duration; however, restricted driving privileges may be requested for the duration of the time driving privileges would have been revoked. The Installation Commander or 55

MSG/CC may, in their sole discretion, approve or disapprove such a request. See **paragraph 2.9** for information on requesting restricted driving privileges.

2.5.3. When temporary suspensions are followed by revocations, the revocation period will be computed from the original suspension date, exclusive of any period during which full driving privileges were restored pending resolution of charges.

2.5.4. Personnel apprehended/detained for DUI/DWI, or operating a vehicle while under suspension/revocation, are subject to having the vehicle impounded and towed.

2.5.5. Multiple revocations will run consecutively unless otherwise determined by the revoking authority.

2.5.6. Squadron commanders may recommend suspension/revocation of on-base driving privileges of a military member or civilian employee assigned to their unit to 55 MSG/CC.

2.5.7. 55 SFS/MAR (Reports and Analysis) will forward revocation, suspension, and driving records to gaining commanders for outbound personnel, and initiate appropriate staff action when receiving similar records from losing commanders of inbound personnel.

2.5.7.1. 55 SFS/MAR is responsible for administration of reports of moving traffic violations, suspensions, and revocations, including actions of military and state law enforcement authorities. Once command action is completed on each case file in the Air Force Justice Information System (AFJIS), 55 SFS/MAR will automatically transfer the individual history record via AFJIS to the Administration and Reports section of the gaining installation. A hard copy of all active suspension and revocation case files are forwarded via certified mail to the gaining servicing security forces unit. Upon receipt of gaining individual history, 55 SFS/MAR will send an electronic copy of the history to the individual's gaining commander through the unit First Sergeant if the file contains unfavorable information.

2.5.7.2. If newly assigned individuals are identified as having a current suspension or revocation, 55 SFS/MAR will request a hard copy of the case file from the previous servicing security forces unit and the person's information will be added to the base suspension/revocation/debarment/warrant (SRBW) list and the Defense Biometric Identification System (DBIDS). Offutt AFB will automatically honor revocations issued by other installation commanders, regardless of service component affiliation, when the period of revocation is one year or less; however, revocations for more than one year will be reviewed by the 55 MSG/CC and 55 WG/JA (see **paragraph 2.6.,** Reciprocal Procedures).

2.5.7.2.1. The individual's First Sergeant or supervisor will escort the individual to 55 SFS/MAR to sign the suspension or revocation letter once a final determination is made to suspend or revoke. 55 SFS/MAR will provide a copy of the letter to the individual's organization chain-of-command, and SRBW and DBIDS systems updated to reflect the final decision. 55 SFS/MAR will maintain an electronic version of the SRBW list and provide to the 55 SFS/S-3 operations section weekly for use in the event DBIDS is non-operational.

2.5.7.2.2. Personnel with revoked driving privileges may request restricted driving privileges in accordance with **paragraph 2.5.7**.

2.6. Reciprocal Procedures.

2.6.1. Revocations remain in effect during reassignment unless the issuing authority terminates the revocation prior to the reassignment. The Installation Commander or 55 MSG/CC may honor suspensions as determined on a case by case basis. Anyone with suspended or revoked driving privileges may petition for restricted driving privileges as outlined in **paragraph 2.9**.

2.6.2. Offutt AFB will honor revocations and suspensions issued by State driver-licensing authorities for suspension and revocation of driving privileges. Additionally, 55 SFS/MAR will notify the licensing authority of the State where a license is issued when a person's installation driving privileges are revoked following final adjudication of an intoxicated driving offense or for refusal to submit to a BAC/BrAC test.

2.6.2.1. The notification will include the basis for revocation and the BAC/BrAC level.

2.6.2.2. The notification will be made via US Postal Service Certified Mail. On receipt of written notice, the State may suspend or revoke driving privileges as if the violations or incidents occurred within its own jurisdiction.

2.6.3. Personnel who receive a suspension or revocation of a State-issued driver's license will report to 55 SFS/MAR (Bldg. 365, room A210) the next duty day to advise the Administration and Reports technician of the suspension or revocation of State-issued driver's license and provide pertinent information concerning the suspension/revocation.

2.6.3.1. 55 SFS/MAR will notify 55 WG/JA for a recommendation and request a suspension or revocation decision (as applicable) from the 55 MSG/CC.

2.6.3.2. Personnel will acknowledge receipt of the suspension or revocation of their on-base driving privileges with their signature, as witnessed by a 55 SFS/MAR technician or another individual assigned to the 55 SFS serving the memorandum.

2.6.3.3. When applicable, unit Vehicle Control Officers will ensure the individual's AF Form 2293, *US Air Force Motor Vehicle Operator Identification Card*, is confiscated and forwarded to 55 LRS/LGRV for disposition.

2.7. Administrative Due Process for Suspensions and Revocations.

2.7.1. When a suspension or revocation is being considered for someone's driving privileges,, the person will be notified in writing by 55 SFS/MAR on what action is being considered and the reason for it. This notice is coordinated with 55 WG/JA.

2.7.2. Except for intoxicated driving incidents outlined under **paragraph 2.5.1.3**, an individual's driving privileges will not be suspended or revoked until they are notified (or reasonable attempts made) and offered an opportunity to present evidence on their own behalf. Only in unusual circumstances will verbal notifications be made and a written notification will follow as soon as practicable. The Installation Commander or 55 MSG/CC will authorize an immediate preliminary suspension based on reliable evidence for offenses outlined under paragraphs **4.18 - 4.18.5**. Such evidence can include refusal to consent to chemical testing, chemical test results, video recordings, written statements, field sobriety test results witness statements, a military or civilian police report, or other evidence.

2.7.3. For active duty military personnel and DoD affiliated civilians, a written notice of preliminary suspension will be sent to the individual's Commander or First Sergeant. For contract personnel, the written notice will be forwarded to their government supervisor. The individual will be directed by their Commander, First Sergeant or government supervisor to report to the 55 SFS/MAR to receipt for the Notice of Preliminary Suspension of Base Driving Privileges letter.

2.7.3.1. Non-installation, non-DoD affiliated civilians will be presented the written Notice of Preliminary Suspension of Base Driving Privileges letter either in person (preferred) or by certified mail.

2.7.3.2. The suspended individual will be advised of the following when issued the Preliminary Suspension of Base Driving Privileges letter:

2.7.3.2.1. Suspension can become a revocation.

2.7.3.2.2. Offenders have a right to request restoration of immediately suspended driving privileges pending investigation or resolution of the incident. Such requests must be submitted through 55 SFS/MAR within five (5) duty days from the date the individual acknowledges the "Notice of Preliminary Suspension of Base Driving Privileges" letter. Contact 55 SFS/MAR at 402-294-3779 for instructions on submitting a request for restoration of base driving privileges.

2.7.3.2.3. Right to present evidence. Individuals have five (5) duty days after being notified of a proposed suspension or revocation to submit evidence on their behalf through 55 SFS/MAR. Evidence may include legal documents, police reports, written witness statements, and pictures. Additionally, an individual may request a personal appearance before the 55 MSG/CC. The 55 MSG/CC may grant a personal appearance in accordance with AFI 31-218(I). Contact 55 SFS/MAR for instructions on submitting evidence.

2.7.4. For revocation actions under paragraph **2.5.2.1.1 and 2.5.2.1.2** for intoxicated driving, the revocation is mandatory on conviction or other findings that confirm the charge. For all other convictions the length of the revocation will be determined by the appropriate authority.

2.7.5. Any new revocation will cancel any partial or restricted driving privileges previously granted. Once revocation is acknowledged, a person may petition for the restoration of all or partial driving privileges as outlined in **paragraph 2.9**.

2.8. Alcohol and Drug Abuse Program.

2.8.1. After coordination with 55 WG/JA, unit commanders may consider directing drug and/or alcohol testing within 24 hours of a suspected alcohol related motor vehicle/traffic incident or misconduct; episodes of aberrant or bizarre behavior; or where there is reasonable suspicion of drug use and the member refuses to provide consent for testing. Commanders are encouraged to ensure BAC or BrAC tests are taken as soon after the incident as possible to determine the level and intensity of alcohol involvement.

2.8.2. Commanders will ensure military personnel convicted of, or receiving an official administrative action for, intoxicated (drug or alcohol related) motor vehicle operation are referred for alcohol and drug abuse evaluation. The provisions of this paragraph do not limit the Commander's prerogative concerning other actions that may be taken against an offender

under separate Service/agency polices. Unit First Sergeants (or equivalent) will ensure this referral is documented during the Command Action phase and reflected on the AF Form 3545A, *Incident Report,* Section VIII- Commander's Action – Offender Identifier, which is then forwarded to 55 SFS/MAR.

2.8.3. Active duty Air Force and members of the Air Force Reserve Command and Air National Guard (when activated longer than 30 days), whose installation driving privileges were suspended or revoked as a result of an alcohol related incident, will receive a minimum of 6-hours of awareness education before reinstatement of base driving privileges can be requested. Unit First Sergeants or civilian equivalents will ensure 55 SFS/MAR is notified of the date the individual completed the 6-hour awareness education class/training and document the completion on Section VIII of the AF Form 3545A, *Incident Report.*

2.9. Restricted Driving Privileges.

2.9.1. The Installation Commander or 55 MSG/CC may authorize restricted driving privileges to offenders whose privilege to drive on military installations was suspended or revoked. All requests for restricted driving privileges must be in writing and endorsed by the individual's Commander or civilian equivalent. Contact 55 SFS/MAR for instructions on submitting requests and processing.

2.9.1.1. Restricted driving privileges or reinstatement will not be given to any person whose civilian driver's license is under suspension or revocation by a State licensing authority.

2.9.1.2. With the exception of vehicle operators who refuse (for on- and off-base offenses) to submit to a chemical test of their breath, blood or urine for the presence of alcohol or drugs, any individual whose driving privileges have been revoked for a conviction, non-judicial punishment, or a military or civilian administrative action resulting in the suspension or revocation of a driver's license for intoxicated driving may:

2.9.1.2.1. Request reinstatement of limited driving privileges. The Installation Commander or 55 MSG/CC may, in their sole discretion, approve or disapprove such a request. Contact 55 SFS/MAR for a formatted template of the request memorandum.

2.9.1.2.2. If the alcohol incident occurred in Nebraska, offenders may request permission to install and have monitored, at their own volition and expense, an ignition interlock device for the duration of the time their driving privileges would have been revoked. If a request is made, the individual must include a copy of the valid Nebraska Department of Motor Vehicles-issued Ignition Interlock Permit (IIP). Further information for IIP can be found at: **https://dmv.nebraska.gov/fr/ignition-interlock-permit.The** Installation Commander or 55 MSG/CC may, in their sole discretion, approve or disapprove such a request.

2.9.1.3. 55 SFS/MAR will ensure the person's civilian State driving credentials are valid prior to the request being forwarded for a decision.

2.9.1.4. If approved, the individual will be notified by letter and 55 SFS/MAR will update this status in the DBIDS. The individual must have the letter in their possession when operating a vehicle and must present the document upon request.

2.10. Extensions of Suspensions and Revocations.

2.10.1. Suspension or revocation periods will be increased by two years if an individual is discovered driving while their driver's license or installation driving privileges are under suspension or revocation, or if found violating the conditions of any granted restricted driving privileges. Any restricted driving privileges previously granted will be immediately revoked.

2.10.2. The Unit or Installation Commander may also take administrative or disciplinary action.

Chapter 3

PRIVATELY OWNED VEHICLE OPERATION REQUIREMENTS

3.1. Requirements. Persons who accept the privilege to operate a motor vehicle on the installation must:

3.1.1. Be lawfully licensed to operate motor vehicles in appropriate classifications and not be under suspension or revocation in any state.

3.1.2. While operating a motor vehicle, possess, and produce on request by law enforcement personnel, the following:

3.1.2.1. A certificate of state registration as required by the state in which the vehicle is registered. All vehicles being operated on Offutt AFB will display license plates in accordance with the requirements of the state where the vehicle is licensed.

3.1.2.1.1. Vehicle owners awaiting arrival of home-state registration/decals must possess a Department of Motor Vehicle (DMV) receipt or other proof from their home-state indicating the registration has been renewed. Security Forces will confirm registration is valid through National Crime Information Center (NCIC).

3.1.2.1.2. Commercial/company vehicles with photo copied registration or DMV receipt will be verified through license plate number/year tag number information on the photocopied registration or DMV receipt and NCIC validation.

3.1.2.1.3. If a vehicle is purchased locally from an individual in-transit permits are not issued; however, the signed and dated bill of sale is adequate for base entry. The bill of sale authority expires after 30 days. Vehicles without valid registration (i.e., in-transit, bill of sale, registration renewal/new transit plates) will be denied base access.

3.1.2.1.4. Beginning January 1, 2023, in the case of a motor vehicle or trailer operated by a metropolitan utilities district registered pursuant to NRS 60-363 (**https://www.nebraskalegislature.gov/laws/statutes.php?statute=60-363**), the registration certificate shall be kept at the principal place of business of the metropolitan utilities district.

3.1.2.2. A valid State or international driver's license (with appropriate classifications, as applicable to the class of vehicle to be operated) and a valid access credential (e.g., Common Access Card, AF Form 75, *Visitor Pass, etc.*) when on Offutt AFB. Any new Nebraska resident with a valid license from another State must obtain a Nebraska license within 30 days. Active duty military personnel may claim residence in another State and may present a valid license from that State. International driver's licenses are valid up to 60 days upon arrival at the installation, after which only valid state licenses are permitted. For a complete explanation of available licenses or permits, see NRS 60-480, Operators' licenses: classification (**https://nebraskalegislature.gov/laws/statutes.php?statute=60-480**).

3.1.2.2.1. Security Forces may conduct an NCIC check to verify the status of an individual's driver's license.

3.1.2.2.1.1. Individuals who have been issued a valid State or international driver's

license (verified through NCIC at the time of the vehicle stop) but not in possession of the license at the time of the vehicle stop, will be cited for driving without a valid operator's license. The individual must report to 55 SFS Administration and Reports section (55 SFS/MAR) with the valid license within 72 hours in order to have the citation voided. Failure to comply will result in the citation being processed to the unit for command action, and/or possible suspension/revocation of installation driving privileges.

3.1.2.2.1.2. Individuals without a valid State or international driver's license at the time of the stop will be cited for driving without a license and there are no provisions to have these citations voided. The citation will be processed for command action, and/or possible suspension/revocation of installation driving privileges.

3.1.2.2.2. Persons who knowingly allow an unlicensed driver to operate a motor vehicle are subject to a one-year revocation of their installation driving privileges.

3.1.2.2.3. If a person is driving on Offutt AFB with a learner's permit, the passenger in the vehicle must be at least twenty-one years of age and must also possess a valid operator's license.

3.1.2.3. Valid proof of insurance, with a policy effective date and an expiration date, is required. Evidence of insurance may be displayed in physical format or an electronic image on an electronic device. If a person displays evidence of insurance on an electronic device, the person is not consenting for law enforcement to access other contents of the device; however, whenever a person presents an electronic device for purposes of evidence of insurance, the person presenting the electronic device assumes liability for any damage to the device.

3.1.2.3.1. Operating or allowing the operation of a motor vehicle not insured to the minimum requirements of the state of registration will result in a 1-year revocation of the vehicle owner's installation driving privileges.

3.1.2.3.2. An individual cited for failure to provide proof of financial responsibility or evidence of insurance must provide proof the next duty day (72 hours if cited during the weekend) after being cited for driving without insurance to 55 SFS/MAR. Failure to provide valid proof within the prescribed time may result in a one-year revocation of base driving privileges.

3.1.2.4. Proof of compliance with vehicle safety inspection and local vehicle emission inspection, if required by the State in which the vehicle is registered.

3.2. All-terrain vehicles (ATVs), snowmobiles, go-carts, and off-road vehicles. The use of privately owned all-terrain vehicles (ATVs), snowmobiles, go-carts, or any off-road vehicle is prohibited from being operated on Offutt AFB, except for commercial vehicles when in the performance of work required by contract, and Government-owned ATVs and off-road vehicles operated for official business.

3.3. Handicapped Identification. Handicapped parking permits, issued by a State licensing authority, are honored on Offutt AFB. These permits authorize the use of parking spaces and

access aisles that have been designated for the exclusive use of handicapped persons. Use of these designated parking spaces by non-handicapped personnel is prohibited.

3.3.1. Persons temporarily handicapped, such as utilizing crutches, may request a temporary reserved parking space by letter to the 55 MSG/CD. Reserved parking allocation should be requested for handicapped employees at their duty location. Use of handicapped parking spaces by non-handicapped personnel is prohibited.

3.4. Motorcycles, Motor Scooters and Mopeds.

3.4.1. Training. All military personnel who operate or intend to operate a motorcycle on or off base must meet Motorcycle Safety Foundation® (MSF) Basic Rider Course (BRC) or a State- approved curriculum for motorcycle operator's safety training.

3.4.2. Personal Protective Equipment (PPE). All operators and passengers will wear the following PPE, in accordance with manufacturer specifications and directions, while operating motorcycles or ATVs on the installation:

3.4.2.1. Helmet. A helmet that meets or exceeds standards established in the U.S. Department of Transportation's (DOT) Federal Motor Vehicle Safety Standard No. 218, 49 C.F.R. 571.218, for motorcycle helmets.

3.4.2.2. Eye Protection. Eye protection must be worn that is designed to meet or exceed American National Standards Institute (ANSI) Standard Z87.1-2003. A windshield or fairing does not constitute eye protection.

3.4.2.3. Foot Protection. Foot protection includes sturdy over-the-ankle footwear that affords protection for the feet and ankle.

3.4.2.4. Protective Clothing. Protective clothing includes long-sleeved shirt or jacket, long trousers, and full-fingered gloves or mittens made from leather or other abrasion-resistant mater.

3.4.3. Motorcycle headlights must be on at all times.

Chapter 4

TRAFFIC CODE AND ENFORCEMENT

4.1. The Assimilative Crimes Act (18 U.S.C. § 13). In accordance with Department of Defense (DoD) Directive 5525.4, *Enforcement of State Traffic Laws on DoD Installation*s and 18 U.S.C. § 13, *The Assimilative Crimes Act*, Offutt AFB assimilates all state motor vehicle traffic and pedestrian regulations as prescribed in Nebraska Criminal and Traffic Law Manual (current editions). Furthermore:

4.2. Restraint Systems.

4.2.1. Properly adjusted and fastened restraint systems will be worn by all operators and passengers of GOVs on or off the installation.

4.2.2. Properly adjusted and fastened restraint systems will be worn by all operators and passengers of POVs operated on Offutt AFB, except for: Farm tractors and implements of husbandry designed primarily or exclusively for use in agricultural operations; autocycles; motorcycles; buses, unless restraint systems are installed; and any motor vehicle designated by the manufacturer as a 1963 year model or earlier which is not equipped with an occupant protection system.

4.2.3. Any person in Nebraska who drives any motor vehicle which has or is required to have an occupant protection system or a three-point safety belt system shall ensure that all children up to eight years of age being transported by such vehicle (a) use a child passenger restraint system which meets Federal Motor Vehicle Safety Standard 213 and which is correctly installed in such vehicle and (b) occupy a seat or seats, other than a front seat, if such seat or seats are so equipped with such passenger restraint system and such seat or seats are not already occupied by a child or children under eight years of age. In addition, all children up to two years of age shall use a rear-facing child passenger restraint system until the child outgrows the child passenger restraint system manufacturer's maximum allowable height or weight, pursuant to NRS 60-6,267 (**https://nebraskalegislature.gov/laws/statutes.php?statute=60-6,267**).

4.2.3.1. Operators using vehicles equipped with air bags must still wear the manufacturer's primary restraint system (seat belts).

4.2.4. The following persons may not be required to wear an occupant protection system:

4.2.4.1. A person who possesses written verification from a physician that the person is unable to wear an occupant protection system for medical reasons.

4.2.4.2. A member of an emergency medical service while involved in patient care.

4.2.5. No passengers will ride in the open bed of a pickup truck.

4.2.6. Security forces personnel may conduct a traffic stop and issue a citation for failure to utilize restraint systems or child passenger restraint systems without further violations present.

4.3. Driver Distractions.

4.3.1. Headphones and earphones. The wearing of headphones and/or earphones is prohibited while driving a motor vehicle on base. This does not negate wearing of hearing protection

when conditions and good judgment dictate its use, such as when driving in noise hazard construction areas. This restriction does not apply to helmet intercom systems worn by motorcycle operators and their passengers, or a vehicle operator with a Blue Tooth type device in one ear.

4.3.2. Vehicle operators shall not use cell phones while the vehicle is in operation, except when using a hands-free device or hands-free operating mode. Land Mobile Radios (LMR) are primarily listening devices and are not restricted. Cell phones and other devices, when used only in push-to-talk (walkie-talkie, direct connection) mode, are considered LMRs only when their use is required and when issued by the Government for the performance of official government duties.

4.4. Noise Control. Personnel will control the volume of amplified sound (radio, CD player, etc.) from inside their vehicle, so that it will not be audible for a distance in excess of fifty (50) feet from the vehicle.

4.5. Radar Detection Devices. The use and/or display of radar or laser detection devices is prohibited while on the installation.

4.6. Speed Regulation.

4.6.1. Offutt AFB speed limit is 25 mph unless otherwise posted, or as follows;

4.6.2. Housing Areas: Rising View Housing area is 20 mph, except Lockbourne Drive and Kennedy Blvd which are posted at 25 mph; Coffman Heights is 15 mph, unless otherwise posted; General's Row (SAC Blvd to Lincoln HWY) is 20 mph; Chief's Row Lincoln HWY to Grants Pass is 20 mph.

4.6.3. Speed limits in and around the dormitories are posted and vary between 10 and 15 mph.

4.6.4. School zones are 15 mph when children are present or school zone lights are flashing.

4.6.5. Airfield speed limits are in accordance with OAFBI 11-250, *Offutt AFB Airfield Operations*.

4.6.6. Inside the Martin Bomber Building (Bldg. 301D) and the Bennie L. Davis Maintenance Facility (Bldg. 457) the speed limit is 5 mph.

4.6.7. Parking lots are 10 mph.

4.6.8. Base Lake Complex is 15 mph.

4.6.9. Operators will not exceed 5 mph when backing a vehicle.

4.7. Miscellaneous Traffic Rules.

4.7.1. U-Turns. U-turns are only allowed at installation gates when directed and supervised by Security Forces, on dead end streets, or at gates closed to traffic.

4.7.2. Overtaking a vehicle. Overtaking and passing is prohibited when any of the following conditions exist:

4.7.2.1. Within a parking lot.

4.7.2.2. When a vehicle(s) is marked "Explosives".

4.7.2.3. When there is a marked convoy of Government vehicles traveling together.

4.7.2.4. Formations of marching personnel proceeding in the same direction on the roadway will not be passed, unless signaled to do so by the person in charge of the formation. When passing troop formations the speed limit is 10 mph.

4.7.2.5. Buses (including the base shuttle bus) will not be passed from either direction, when the stop-arm is out, red warning lights are flashing, or while stopped to load or unload passengers.

4.7.2.6. On any single lane road of one-way traffic. Exception: Passing is permitted when overtaking a slow-moving vehicle, such as a street sweeper or forklift.

4.7.3. Do not drive through an area that is posted, marked, or barricaded by means of barriers, cones, or similar devices.

4.7.4. Unattended children and pets in a vehicle. Children under seven will not be left in any motor vehicle without supervision (a responsible individual). Pets will not be left unattended in motor vehicles.

4.7.5. Vehicle maintenance. Significant vehicle maintenance, such as an engine overhaul, brake relining, etc., is prohibited on the installation, except at approved locations such as the Base Auto Skill Center. Minor maintenance such as oil/coolant changes is permissible, provided fluids, parts, and trash are properly disposed of by an approved method.

4.7.6. Vehicle operators will turn on headlights from sunset to sunrise; during fog, smoke, or rain when windshield wipers are activated; and at any other time when pedestrians and vehicles cannot be seen clearly. Points are assessed as operating an unsafe vehicle.

4.8. Parking.

4.8.1. Vehicles will only be parked within marked parking spaces/stalls, except in front of housing units in Rising View Housing, Coffman Heights and in front of the historic residences on Custer Drive and Sherman Turnpike, unless prohibited by posted signs. All other on-street/parking lot parking where lined spaces/stalls do not exist is prohibited.

4.8.2. Do not park at any place where official signs prohibit parking.

4.8.3. Do not park within fire lanes (designated by a curb painted red or posted with signage) or within 15 feet of a fire hydrant.

4.8.4. Do not park within twenty feet of a crosswalk at an intersection.

4.8.5. Do not park or stand, impeding the flow of traffic, down the center or traveled portion of any installation parking lot.

4.8.6. Do not park against the flow of traffic.

4.8.7. Do not park on sidewalks or in such a manner to obstruct sidewalks, curbs, street shoulders, and grass areas unless designated by 55 SFS during special events.

4.8.8. Do not park on the mailbox side of the street in Rising View Housing.

4.8.9. Do not park along the curb in cul-de-sacs within Rising View Housing and Coffman Heights.

4.8.10. Do not park in reserved parking spots, to include spaces designated for aircraft alert forces. Further information on reserved parking is found in **paragraph 4.9**.

4.8.11. Do not stop, park, or leave any vehicle, whether attended or unattended, upon the paved or main traveled part of any roadway when the vehicle can be parked off the roadway.

4.8.12. Parking along the circle at the Offutt Inn is for Distinguished Visitors only.

4.8.13. Motorcycles may park in the cross-hashed lines at the end of a parking row, except when adjacent to a designated handicap parking space.

4.8.14. Parking during snow removal.

4.8.14.1. On street parking is prohibited anytime a snow emergency is declared.

4.8.14.2. Dormitory residents must use dormitory overflow parking as designated by their dormitory manager during snow removal. Housing residents must park their vehicles in garages, carports, or driveways during declared snow emergencies. Extra vehicles may be parked temporarily (less than 3 days) in the Capehart Shoppette, Tumpane Road Parking Lot and the Willow Lakes Golf Course overflow (lower) parking lot. Once snow removal has been completed, the vehicles must be removed from the temporary parking location.

4.8.14.3. During snow removal operations, all parking lots will be open parking except for handicap and reserved parking around Bldg. 1000, or those spaces identified by above ground signs.

4.8.14.3.1. The use of free-standing signs and stanchions in parking lots interferes with parking lot maintenance, especially regarding snow removal and shall therefore be minimized.

4.8.14.3.2. Extended use of free-standing signs and stanchions is subject to the approval of the 55 CES/CL. Failure to remove standing signs and stanchions when requested by 55 CES/CL may result in their removal and disposal without further notice.

4.8.15. Recreational Vehicle Parking Requirements. Parking of motorized recreational vehicles longer than 20 feet in length, travel/utility trailers, and boats anywhere other than designated areas in **Attachment 2** is prohibited.

4.8.16. Semi-Tractor/Tractor Trailer Parking. Parking semi-tractors or tractor-trailers in Rising View Housing or Coffman Heights is prohibited. If required, semi-tractors or tractor-trailers may be parked in the Willow Lakes overflow (lower) lot. Ensure a note is placed in the windshield that includes operator local location (address) and contact information, including a telephone number.

4.8.17. Parking vehicles which are of "For Sale." Vehicles will not be parked on the installation for the sole purpose of advertising the vehicle, except in the lot operated by 55 FSS. Vehicles may only be operated and parked on Offutt AFB with a sign displaying the owner's desire to sell the vehicle if the vehicle is being used as a regular mode of transportation. Signs will not obstruct the driver's view while the vehicle is in motion.

4.8.18. Long-term/temporary duty (TDY) parking.

4.8.18.1. Commanders may also allow unit members to park their vehicles in the vicinity of the workplace if ample parking is available. Minimum standoff distances during increased Force Protection Conditions should be incorporated when designating the

parking location. Failure to provide minimum stand-off may result in vehicle towing, if required, at the vehicle owners expense.

4.8.18.2. TDY vehicle owners must assign a caretaker for the vehicle and report the storage and caretaker information to their supervisor, First Sergeant or Commander in the event the vehicle must be moved or is involved in a crime.

4.8.19. Willow Lakes Golf Course lower parking lot may be used for golf course patrons, billeting residents, and snow removal. All other parking in Willow Lakes Golf course lower parking lot is prohibited unless otherwise directed.

4.8.20. POV parking within Bldg. 301D (Martin Bomber Bldg.). Personnel require specific approval and are issued a parking permit by the Reserved Parking Board (RPB). See **paragraph 4.9**. **For further information on the RPB.**

4.8.21. Parking in yellow-lined parking slots is authorized; however, these locations are within the 25-meter standoff area and, in the event FPCON CHARLIE or higher is implemented (exercise or real-world), or as directed by the Installation Commander, vehicles parked in these spots must be moved immediately.

4.9. Reserved Parking.

4.9.1. The RPB manages all parking spaces on base, excluding those areas under the control of USSTRATCOM and those within the Ehrling Bergquist Clinic compound. Parking information for these excluded areas should be directed to USSTRATCOM Command Security (USSTRATCOM/J050) or 55 MDG/CC, as applicable.

4.9.2. The RPB approves and assigns all reserved parking spaces, such as visitors, government vehicles, handicapped personnel, or any other determined purpose. Establishment of extended reserved parking by individuals and/or units without RPB approval is prohibited.

4.9.2.1. **Attachment 3** lists basic/automatic reserved parking allocations for units. The number of handicapped parking spots is regulated by Americans with Disabilities Act (ADA) guidelines; GOV parking spots are based upon the number of unit assigned GOVs.

4.9.2.2. Units may submit additional reserved parking allocation requests in writing, through the 55 MSG/CD, to the RPB for approval. Requests must provide justification and a map showing requested parking slots and preferred locations, as appropriate. Do not request additional spaces for the purpose of carpooling. **Attachment 4** is a template for the written request.

4.9.3. Annual Revalidation. Automatic allocations need not be revalidated; however, unit-requested spaces must be revalidated each year, not later than 1 March. Revalidation request letters must include justification and map identifying the locations. Reserved parking spaces not revalidated annually with the RPB will be eliminated.

4.9.4. Reserved parking signs shall be limited and will only be approved when absolutely necessary. Not everyone with a reserved parking space will be authorized a sign. The default method of designating reserved parking is white painted rectangles on the pavement with black letters. Reserved parking spaces are reserved 24 hours a day, every day, unless specified otherwise. Management and maintenance of these devices, including marking, is the responsibility of 55 CES. Self-painted or self-installed parking signs are prohibited.

4.10. Parking Warden Program.

4.10.1. In addition to Security Forces, Offutt AFB uses parking wardens (unit personnel) to monitor and cite parking violators, especially within off-street parking facilities. 55 SFS/CC is the overall management authority for this program.

4.10.2. Unit commanders are responsible for managing a facility's parking plan by overseeing the actions of the Parking Lot Wardens. Parking Wardens enforce the regulatory parking guidance for parking lots associated within their organization areas of responsibility. This authority includes, but is not limited to, citing vehicles parked in reserved parking slots, double parked, parked on hash lines, on the grass, or any place other than a designated parking area.

4.10.3. Parking Wardens will be designated in writing by unit commanders or equivalents. The letter will specify a minimum of one primary and alternate at the grade of E-5 or above, or the civilian grade of GS-6 or above. Those selected as Parking Wardens will contact 55 SFS/S3T training section to coordinate training. Designated personnel are not authorized to write tickets until this training is completed.

4.10.4. After training is complete, a DD Form 1408, *Armed Forces Traffic Ticket*, book will be issued to the Parking Warden. A copy of the appointment letter will be maintained on file with the 55 SFS/MAR.

4.10.5. The primary difference between a DD Form 1408 issued by a Security Forces member and one issued by a Parking Warden is the special instructions on the back of the pink copy. Parking Wardens will annotate the ticket to direct violators to contact the Parking Warden who issued the ticket instead of 55 SFS/MAR. It is important that Parking Wardens include how or where they can be reached by the violator.

4.10.5.1. When contacted by the violator, the Parking Warden will fill in any missing data in sections 1-10 of the DD Form 1408. Tickets which are incomplete or were written by personnel not designated as Parking Warden will not be processed and will be returned to the unit.

4.10.5.2. Once the violator makes contact with the Parking Warden and the Parking Warden determines the citation will stand, the citation will be forwarded to 55 SFS/MAR. Citations received more than 10 days after the date they were issued will not be processed.

4.11. Vehicle Accidents.

4.11.1. A major traffic accident is any accident that involves: A fatality or an accident victim displays or claims injury in which medical assistance is requested or required; any accident where vehicle and/or private property damage is likely to exceed $20,000, or any when a vehicle is inoperable as a result of the accident. This applies to government as well as private vehicles and property damages. A minor accident is any accident that does not meet the standards of a major accident. The on-duty security forces Flight Chief will make the determination if the accident is to be declared a major vehicle accident.

4.11.2. Vehicle operators will immediately report all on-base POV and GOV accidents to Security Forces, and all off-base GOV accidents must be reported to both local law enforcement and to Security Forces.

4.11.3. Minor vehicle accidents on-base involving a POV, GOV, or when there's damage to government property will require completion of the Offutt Form 3120, *Minor Traffic Accident*

Worksheet, AF Form 3545A, *Incident Report*, and a blotter entry. Additionally, minor vehicle accidents involving a GOV or damage to government property will include photos of damage, and an AF Form 1168. *Statement of Suspect/Witness/Complainant*, from involved parties.

4.11.3.1. Blotter entries should include accident type, time and date, location, name(s) of vehicle operator(s), unit (or address when civilian not affiliated with military), vehicle description and license number(s)/plate. Additionally, include a brief summary of any damage and circumstances behind or causing the accident, as well as any traffic citations issued.

4.11.4. Major vehicle accidents will be investigated by a trained 55 SFS member or AFOSI certified in major accident investigations. A major accident investigation includes, but is not limited to, a blotter entry, an AF Form 3545A, photos, field sketches, scaled diagrams, and statements from involved parties and witnesses.

4.11.5. Security forces will report all accidents involving injuries to military personnel or damage to military property to the 55th Wing Command Post (55 WG/CP) and 55th Wing Safety Office (55 WG/SE).

4.11.6. When possible, 55 SFS/MAR will obtain copies of major accident reports prepared by investigating civilian police agencies.

4.12. Traffic Violation and Accident Report Requests.

4.12.1. The 55 SFS/MAR will process requests for tickets, accidents, incident and other related documents created by the 55 SFS as Privacy Act requests. An Offutt Form 3121, *55th Security Forces Squadron Document Request,* is used to request these types of documents. Responses to requests for information contained in approved systems of records will be processed using the guidelines shown in AFI 33-332, *Privacy Act Program*, and installation Privacy Act Program office guidelines.

4.12.2. When releasing information to an authorized third party, 55 SFS/MAR will document the disclosure on the AF Form 771, *Accounting of Disclosures*, or similar method that captures all information required by the AF Form 771.

4.12.3. Requests for information made by insurance companies or legal entities will be handled using the guidelines issued by HQ ACC Privacy Act Office and the 55th Wing Privacy Act Office.

4.13. Use of Traffic and Accident Report Data.

4.13.1. Traffic activity and accident data are compiled for analysis to determine selective enforcement efforts by law enforcement patrols.

4.13.2. Traffic activity and accident data will be provided to 55 WG/SEG and base traffic engineer for Traffic Safety Coordination Group meetings, when requested.

4.14. Speed-measuring Devices. Speed-measuring devices are used in traffic control studies and enforcement programs. Signs will be posted at installation entry points to indicate the use of speed-measuring devices.

4.14.1. On Offutt AFB, RADAR/LIDAR operators are not required to show the speed displayed on the RADAR/LIDAR unit to the vehicle operator stopped for a speed violation.

4.14.2. Training and certification. RADAR/LIDAR speed measuring device operators are certified through the State of Nebraska and recertified every three years. Training and certification documentation is maintained by the 55 SFS/S-3T.

4.15. Traffic Citations. Offutt AFB utilizes the DD Form 1408, *Armed Forces Traffic Ticket*, and *US District Court Violation Notice (USDCVN)* for traffic violations.

4.15.1. Individuals who refuse to provide their SSN during USDCVN or DD Form 1408 issuance may have their base driving privileges suspended/revoked for a period of up to 1-year, after coordination through 55 WG/JA and approval by 55 MSG/CC.

4.15.2. DD Form 1408. The Commander or First Sergeant will be notified by 55 SFS/MAR when any military personnel or DoD civilian employees are cited with the DD Form 1408. The DD Form 1408 are distributed as follows:

4.15.2.1. The pink copy is provided to the violator with normal reporting instructions and instructions on how to rebut the ticket. The issuing Security Forces member will write, stamp or place a label on the back of the pink copy given to the violator with the following: "If you wish to rebut this citation contact the Security Forces Reports and Analysis section (55 SFS/MAR) at 402-294-3185 within 5 duty days. If you do not notify 55 SFS/MAR of the rebuttal request within 5 duty days, your right to rebut the citation is voided and the citation will be processed. Please notify your Commander or First Sergeant within 24 hours or next duty day."

4.15.2.1.1. Once notice to rebut the citation has been provided to 55 SFS/MAR, the ticket recipient must submit a letter to 55 SFS/MAR indorsed by their Commander or civilian equivalent within 14 days of the date of the citation. The purpose of this endorsement is to ensure commander-level consideration and involvement.

4.15.2.1.2. 55 SFS/MAR will process the rebuttal letter and forward to the Defense Force Commander (DFC) for a determination if the ticket will be voided or processed as normal.

4.15.2.1.3. The service member's Commander or First Sergeant, civilian's supervisor or employer for administrative action within the unit/organization, or the Commander or First Sergeant of the family member's sponsor, will be notified of the decision.

4.15.2.1.4. The Commander or civilian equivalent will take or recommend proper disciplinary or administrative action within 20 days of notification. If needed, an extension may be requested from 55 SFS/MAR.

4.15.2.1.5. The Commander will forward the results of any action to 55 SFS/MAR.

4.15.2.2. The yellow and white copy is retained by 55 SFS/MAR for processing and tracking until the electronic notification is answered by the Commander or First Sergeant. When command action is received, 55 SFS/MAR will review it for action taken to annotate the information in AFJIS, with the moving or non-moving violation and any points assessed. The white and yellow copies of the DD Form 1408 are filed and retained for one year after action is complete.

4.15.2.3. The DFC will advise the Installation Commander, through 55 WG/JA, when action being taken by the reviewing commander appears to be inadequate or excessive.

4.15.3. DD Form 1408 "Fix-it-Ticket." A vehicle identified as having an inoperative headlight, taillight, turn signal or any minor safety hazard to the vehicle may be issued a "Fix-it-Ticket." The operator/owner then has five duty days to take corrective action. Each violation will be written on a separate DD Form 1408. The operator/owner must report to 55 SFS/MAR with proof of repair in order to have the citation voided. Failure to report the corrective action will result in citation processing.

4.15.4. US District Court Violation Notice (USDCVN).

4.15.4.1. USDCVNs may be used to cite any offense(s) listed in the Collateral Forfeiture Schedule (CFS) (Attachment 5) committed by retired military personnel, Government civilians, contractors, civilian dependents and any non-DoD affiliated civilian. USDCVN's will be forwarded to 55 SFS/MAR for appropriate processing actions. The following exceptions apply:

4.15.4.1.1. The DD Form 1408 will be used to cite active duty military personnel rather than a USDCVN.

4.15.4.1.2. Any person committing a traffic violation while operating a GOV will be issued a DD Form 1408 rather than a USDCVN.

4.15.4.1.3. Any person committing a traffic violation while operating a vehicle on the flight line will be issued a DD Form 1408 rather than a USDCVN.

4.15.4.1.4. Traffic Wardens may only issue the DD Form 1408, regardless of the offender's duty status (i.e., active duty military, civilian dependent, contractor, etc.).

4.15.4.1.5. Citations may be referred to the Federal Magistrate's Court for prosecution under the Assimilative Crimes Act, 18 U.S.C., Sections 7 and 13 and the delegation memorandum in DoDD 5525.4, Enforcement of State Traffic Laws on DoD Installations (enclosure 1), and other violations of Federal law to the U.S. Magistrate.

4.15.4.1.6. Offenses not listed on the CFS will be handled using a DD Form 1408, or AF Form 3545A, Incident Report, as deemed appropriate.

4.15.4.2. USDCVN Issuing Procedures.

4.15.4.2.1. The USDCVN may only be issued by personnel assigned to the 55 SFS who have been trained and with training annotated. Individuals in on-the-job (OJT) status can issue citations under direct supervision of a member who has been properly trained.

4.15.4.2.2. The USDCVN will only be issued in areas of exclusive or concurrent jurisdiction. Offutt AFB falls under the U.S. District Court, Nebraska District, with a Location Code of NE3A.

4.15.4.2.3. Blank USDCVN citation books will be maintained and issued by the 55 SFS/S3OL (Police Services). USDVC books are accountable items and 55 SFS members will be issued one USDVC citation book at a time after training has been completed.

4.15.4.2.4. Only one violation will be reported on each citation. For additional violations, additional/multiple citations will be issued.

4.15.4.2.5. All information must be printed by hand and in blue or black ink. Press hard and print legibly as it must go through to the pink and yellow copies.

4.15.4.2.6. The yellow copy and envelope portion will be issued to the offender. The back of the white and pink copy will be used to record probable cause statement, witness names or any notes concerning the incident. The white and pink copies will be reviewed by the on-duty Security Forces Flight Chief and routed with the on-duty flights daily paperwork to 55 SFS/S-3OL for review prior to being filed by 55 SFS/MAR. The pink copy will be available at 55 SFS/MAR for review by the issuing security forces member prior to attending court.

4.15.4.2.7. The use of stickers/labels or stamps on a USDCVN is strictly prohibited.

4.15.4.2.8. Refer to the Central Violations Bureau (CVB) Agency Manual, for further instructions on completing the USDCVN.

4.15.4.2.9. While USDCVN citations are handled by the Federal Magistrate outside of the military chain-of-command, offense data may be tracked and forwarded to senior leadership in the interest of public safety and to ensure security clearance eligibility.

4.15.4.2.10. A copy of the USDCVN and any traffic violation reports on military personnel, civilian employees and contractors will be forwarded to the Commander or supervisor of the violator. This allows tracking by leadership in the interest of public safety and to ensure security clearance eligibility.

4.15.4.3. Voiding a USDCVN.

4.15.4.3.1. In the event an error is made on a USDVC, DO NOT SHRED IT. Accomplish a Memorandum for Record (MFR), depicting the circumstances that led to the initial issuance and subsequent voiding of the citation. Citations can only be voided by the issuing security forces member, Federal Magistrate, or Central Violations Bureau.

4.15.4.3.2. Write "VOID" across the front of the USDCVN and forward the MFR and both copies of the voided citation to the 55 SFS/S-3OL who will review the documents to ensure all requirements have been met. The documents will then be forwarded to 55 SFS/MAR for disposition.

4.15.5. Magistrate Court.

4.15.5.1. Offenses referred to the Federal Magistrate are listed in the CVS with the penalties. Referral to the Federal Magistrate’s Court neither precludes, nor requires further administrative action, based on the offense involved.

4.15.5.2. Persons receiving a USDCVN may be given the option of paying a fine for minor traffic violations. More serious charges require court appearance. All individuals have the option to appear in Federal Magistrate Court to contest any citation. The security forces member who issued the citation may also be required to appear and testify, if the violator wishes to contest the violation, or is ordered to appear.

4.15.5.2.1. Those wishing to appear in in Magistrate Court should follow the instructions on the back of their citation. The CVB will mail a notice containing the court location, date and time of appearance to the offender.

4.15.5.2.2. On street or paid parking is available around the Nebraska Federal Building. Reserved parking for GOVs (very limited availability) is available in the attached parking garage.

4.16. Standards and Procedures for Intoxicated Drivers.

4.16.1. If a Security Forces member has reasonable suspicion that an individual driving or in control of a vehicle is impaired, he/she will request and conduct field sobriety tests on the individual. Only qualified personnel will conduct field sobriety tests and that qualification must be documented in the individual's training record.

4.16.2. If an individual suspected of driving under the influence refuses to perform the standardized Air Force field sobriety tests, their refusal and security force observations will be annotated on the DD Form 1920, *Alcohol Incident Report*.

4.16.3. Security Forces may use Portable Breath Testers (PBT) to aid in the establishment of probable cause. In order to use the PBT, security force users must have been trained by the Nebraska Department of Motor Vehicles and possess a Class C Permit. Permits will be maintained by 55 SFS/S-3OL.

4.16.4. Use only breath-testing devices listed on the approved National Highway Traffic Safety Administration (NHTSA) conforming products list published in the Federal Register. Only qualified personnel may administer breath tests. Select Security Forces personnel will be trained by the Nebraska Department of Motor Vehicles and will receive a Class B Permit. Copies of permits for qualified personnel will be maintained by 55 SFS/S-3OL. If blood or urine testing will be conducted, qualified medical personnel will be used to obtain the samples and conduct the tests. Chain-of-custody for test results will be maintained.

4.17. Duty to Report. All assigned personnel, to include active duty military, DoD civilians, civilian contractors, and dependents with access to Offutt AFB arrested off base for intoxicated or impaired driving must report to Bldg. 365, room A210 (Security Forces HQ) by the next possible duty day and report the driving under the influence (DUI) or driving while intoxicated (DWI) arrest. First Sergeants (for enlisted personnel) or Commanders (for officers) will ensure military members are escorted to Bldg. 365, room A210 to make the report.

4.17.1. Once an individual has completed initial civil court proceedings, it is the offender's responsibility to provide their First Sergeant, Commander, or civilian equivalent with documentation on the outcome of the initial proceedings.

4.17.2. The First Sergeant or civilian equivalent is responsible for providing a copy of this documentation to 55 SFS/MAR, which will be added to the person's case file. This provides 55 WG/JA and the 55 MSG/CC access to pertinent information to make informed decisions concerning possible suspension or revocation of the offender's base driving privileges.

4.18. Blood Alcohol and Breath Alcohol Concentration Standards. The following Blood Alcohol Content (BAC) or Breath Alcohol Content (BrAC) standards, or behavior, constitute an intoxicated driving incident:

4.18.1. Operating a motor vehicle with BAC or BrAC of 0.08 percent by volume or higher. Offutt AFB assimilates the standard utilized by the State of Nebraska (i.e., 0.08 percent).

4.18.2. Persons under the age of 21 operating a motor vehicle with a BAC or BrAC level standard of .01 or higher.

4.18.3. Any person who operates or is in actual physical control of a commercial motor vehicle with a BAC or BrAC of .04 or higher. Commercial motor vehicles are defined in NRS 60-465 (**https://nebraskalegislature.gov/laws/statutes.php?statute=60-465**).

4.18.4. If the BAC or BrAC is 0.05 percent but less than 0.08 percent, presume the person is impaired. Consider this standard with other competent evidence in determining whether the person was under the influence of alcohol. DO NOT allow the individual to operate a motor vehicle until a recommendation is received from 55 WG/JA and 55 MSG/CC (55 MSG/CD in the absence of the 55 MSG/CC).

4.18.5. On an arrest report or other official document reasonably showing an intoxicated driving incident occurred.

4.18.6. Additionally, refusal to take or complete a lawfully requested chemical test to determine Blood Alcohol Content (BAC) or Breath Alcohol Content (BrAC) for alcohol or other drugs.

4.19. Voluntary Breath and Bodily Fluid Testing Based on Implied Consent.

4.19.1. The suspect will be asked to consent to a chemical test of bodily fluids or breathe in accordance with the Implied Consent Policy, as defined in **paragraph 2.3**. The individual does not have the right to have an attorney present before deciding if they will or will not take the test.

4.19.2. Ehrling Bergquist Clinic (Specimen Collection Lab) will perform collection/extraction of urine and blood. During non-duty hours, on-call personnel will be notified and respond to conduct the collection/extraction.

4.19.3. If a person suspected of intoxicated driving refuses to submit to a breath test, do not administer a test except as specified in **paragraph 4.20**.

4.20. Involuntary Extraction of Bodily Fluids in Traffic Cases.

4.20.1. If an individual refuses to submit to a breath test, further search authority actions will be coordinated through 55 WG/JA to obtain valid search and seizure authorizations. A person subject to the Uniform Code of Military justice (UCMJ) who does not consent to chemical testing, and who subsequently refuses a lawful order to surrender to the test, may be forced to submit to an involuntary extraction of bodily fluids. Probable cause must exist to believe the individual was driving or was in control of a vehicle while under the influence of an intoxicant. Determination of probable cause will be coordinated through 55 WG/JA.

4.20.2. Authorization for nonconsensual extraction of blood sample for evidentiary purposes by qualified medical personnel is independent of and not limited by provisions defining medical care. Procedures for involuntary extraction of blood must be performed in a reasonable fashion by personnel with appropriate medical qualifications, pursuant to AFI 44-102, *Medical Care Management*, paragraph. 11.3.2.3.2. Security Forces personnel shall assist medically trained personnel when appropriate. For further guidance, consult AFI 44-102.

4.20.3. Nonconsensual extraction will not interfere with or delay proper medical attention. Medical personnel determine the priority given to involuntary fluid extractions when other medical treatment is required.

Chapter 5

DRIVING RECORDS AND THE TRAFFIC POINT SYSTEM

5.1. Driving Records. The Air Force Justice Information System (AFJIS) will be used to record vehicle traffic accidents, moving and parking violations, suspension or revocation actions and traffic point assessments and accumulations. The AF Form 1313, *Driver Record*, will be used temporarily when AFJIS is not available.

5.2. Traffic Point System. The traffic point system provides a uniform administrative device to impartially judge service personnel's driving performance. This system is not a disciplinary measure or a substitute for punitive action. Further, this system is not intended to interfere in any way with the exercise of the Installation Commander's prerogative to issue, suspend, revoke, deny, or reinstate installation driving privileges.

5.3. Point System. The point system applies to civilian government personnel operating government vehicles on and off the installation and to their POVs driven on-base, if issued a DD Form 1408 or USDCVN citation; military personnel operating GOVs and POVs on or off the installation; and dependents and other individuals (e.g., contractors, military retirees, etc.) subject to this instruction operating vehicles on the installation.

5.3.1. Unless an individual submits a rebuttal, points are assessed according to **Attachment 6** of this instruction. Points will also be assessed for individuals found guilty by a military or civilian court if applicable (e.g. driving vehicle while impaired).

5.3.2. If a person accumulates 12 traffic points within 12 consecutive months or 18 traffic points within 24 consecutive months, the individual's driving privileges will be automatically revoked for one year.

5.3.3. Points assessed against a person will remain in effect for point accumulation purposes for 24 consecutive months. Completion of a revocation based on points requires removal from the driver record of all points assessed before the revocation.

5.3.3.1. Removal of points does not authorize removal of driving record entries for moving violations, chargeable accidents, suspensions, or revocations. These record entries will remain posted on individual driving records for the following period of time: Chargeable nonfatal traffic accidents or moving violations - 3 years; non-mandatory suspensions or revocations - 5 years; and mandatory revocations - 7 years.

5.3.4. Reinstatement of driving privileges, upon termination of the suspension or revocation, is automatic.

5.3.5. Accumulated point reduction opportunity: Anyone completing a Sarpy County Sheriff's Office 4 or 8-hour Safety Training Option Program (STOP) Class - Traffic Ticket Dismissal Class, who obtains their Commander's (or Director's) permission and written support, may present their completion certificate to 55 SFS/MAR and three (3) points will be deducted from their points accrual from the most recent infraction. Class information is available at: **http://apps.sarpy.com/sheriff/safetyprogram/default.html**. Other Sarpy County classes and classes from other jurisdictions will not be accepted. This point reduction is available only once per every three (3) years.

5.4. Disposition of Driving Records. Follow AFI 33-322, *Records Management and Information Governance Program*, to maintain and destroy records of military personnel released from active duty. Driving records remain active in the case of reenlistment, change of officer component, or military and civilian retirement or when continued access to an installation is authorized. Retain or destroy records in accordance with AFI 33-322 for records on civilian personnel who are terminating on-base employment.

5.4.1. Individual history records for personnel departing for a new Air Force duty station are automatically transferred through AFJIS. A hard copy of all active suspension/revocation case files are forwarded via certified mail to the gaining servicing security forces organization or law enforcement servicing unit for other Services. Additionally, for other Services, a printed AFJIS report describing an individual's driving record will be generated and mailed to the gaining law enforcement servicing unit.

5.4.2. 55 SFS/MAR will obtain a legal review from the base legal office for personnel gained to the installation who have an active suspension/revocation of base driving privileges from another installation. The legal review and DFC recommendation are sent to 55 MSG/CC for a determination of continuing any existing suspension or revocation.

5.4.2.1. 55 SFS/MAR will notify the gaining Unit Commander or First Sergeant of the 55 MSG/CC decision and, if necessary, obtain the individuals signature on the Notice of Revocation of Base Driving Privileges letter issued by the 55 MSG/CC. The letter will contain the effective dates from his/her original suspension/revocation.

Chapter 6

IMPOUNDING PRIVATELY OWNED VEHICLES

6.1. Standards for Impoundment. Removal and temporary impoundment of vehicles may occur if a POV is illegally parked for more than seven (7) consecutive days; interferes with traffic operations; creates a safety hazard; is disabled by accident or incident; is left unattended in, or adjacent to, a restricted, controlled, or off-limits area; is abandoned; is involved in a suspected intoxicated driving incident; or is parked in a location not in compliance with the base barrier plan.

6.1.1. When possible, attempts will be made to locate the owner of the vehicle and have the vehicle removed.

6.1.2. If reasonably feasible, allow another responsible person to drive or tow the vehicle, if they first have permission from the owner, operator, or person empowered to control the vehicle. In these situations, the Security Forces (or towing contractor) are not responsible for safeguarding the vehicle or any potential damage due to the move or tow.

6.1.3. The on-duty Security Forces Flight Chief, or above, will determine if in the interest of public safety a vehicle must be driven or moved without owner's consent if the owner cannot be contacted or if the owner refuses to provide consent.

6.1.4. The Security Forces Investigations section (55 SFS/MAD) is the focal point for coordination and tracking of all vehicles towed and/or impounded as a result of official government business on Offutt AFB. If a vehicle must be towed, 55 SFS/MAD will be contacted prior to towing and/or impoundment.

6.2. Procedures. The installation utilizes a civilian wrecker service for official government sanctioned towing and temporary impoundment of vehicles from Offutt AFB. The 55 SFS is the authorized representative for Offutt AFB when removal and impound of a POV is required within the jurisdiction of Offutt AFB. All fees and charges associated with the tow and storage of the vehicle are assessed to the vehicle owner.

6.2.1. Unattended (suspected abandoned) POVs will have a DD Form 2504, *Abandoned Vehicle Notice*, conspicuously placed on POVs considered abandoned. This action will be documented by an entry in the Security Forces Desk Blotter. The vehicle owner will be allowed 3 days from the date the POV is tagged to remove the vehicle before impoundment action is initiated. If the vehicle has not been removed after 3 days, the vehicle may be removed by the civilian wrecker service. Security Forces will complete the DD Form 2505, *Abandoned Vehicle Removal Authorization*, and issue to the civilian wrecker service driver.

6.2.2. Security Forces will complete DD Form 2506, *Vehicle Impoundment Report,* as a record of the actions taken when a vehicle is towed.

6.2.3. An inventory listing personal property will be conducted for towed vehicles. The contents of a closed container, such as a suitcase inside the vehicle need not be inventoried; however, such articles should be opened only if necessary to identify the owner of the vehicle or if the container might contain explosives or otherwise present a danger to the public. Merely listing the container and sealing it with security tape will suffice. Personal property will be placed in a secure area, such as a locked trunk, for safekeeping.

6.2.4. The 55 SFS/MAD will forward the DD Form 2507, *Notice of Vehicle Impoundment*, by certified mail to the address of the last known owner of the vehicle (if known) to advise the owner of the impoundment action.

6.2.5. When a vehicle is impounded for evidentiary or law enforcement purposes (held on Offutt AFB), the vehicle will be held for as long as necessary until proper disposition/coordination with 55 WG/JA. Unless directed otherwise by competent authority, vehicles and property will be released when no longer needed.

6.2.6. If the vehicle was towed and impounded at a wrecker company‘s storage site and the vehicle is not of evidentiary use, the wrecker company may take action under the laws of Nebraska as it pertains to towing and storage fees, and disposition of the vehicle.

KRISTEN D. THOMPSON, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFI 1-1, *Air Force Standards*, 6 Aug 12

AFI 13-213, *Airfield Driving,* 3 Feb 20

AFI 31-218(I), *Motor Vehicle Traffic Supervision,* 22 May 06 (certified current 13 Jul 17)

AFI 33-332, *Air Force Privacy and Civil Liberties Program,* 9 Mar 20

AFI 44-102, *Medical Care Management*, 22 Mar 20

AFI 44-121, *Alcohol and Drug Abuse Prevention and Treatment (ADAPT) Program*, 17 Jul 18

AFI 91-207, *The US Air Force Traffic Safety Program*, 25 Jul 19

DoDM 4160.21, *Defense Material Disposition: Disposal Guidance and Procedures*, 2 Oct 19

DoDD 5525.4, *Enforcement of State Traffic Laws on DoD Installation*s, 30 Sep 20

DoDI 7730.47, *Defense Incident-Based Reporting System (DIBRS)*, 9 Jul 20

Manual on Uniform *Traffic Control Devices (with revisions),* May 09

OAFBI 11-250, *Offutt AFB Airfield Operations,* 3 Mar 17

Prescribed Forms

OAFB Form 3120, *Minor/Major Vehicle Accident Worksheet*

OAFB Form 3121, *Document Request*

Adopted Forms

AF Form 75, *Visitor/Vehicle Pass*

AF Form 771, *Accounting of Disclosures*

AF Form 1313, *Driver Record*

AF Form 2293, *US Air Force Motor Vehicle Operator Identification Card*

AF Form 3545A, *Incident Report*

DD Form 2, *Common Access Card*

DD Form 1408, *Armed Forces Traffic Ticket*

DD Form 1920, *Alcohol Influence Report*

DD Form 2504, *Abandoned Vehicle Notice*

DD Form 2505, *Abandoned Vehicle Removal Authorization*

DD Form 2506, *Vehicle Impoundment Report*

DD Form 2507, *Notice of Vehicle Impoundment*

US District Court *Violation Notice* (USDCVN)

Abbreviations and Acronyms

ADA—Americans with Disabilities Act

AFJIS—Air Force Justice Information System

AFRIMS—AF Records Information Management System

ATVs—All-terrain vehicles

BAC—Blood Alcohol Content

BrAC—Breath Alcohol Content

CAC—Common Access Card

DFC—Defense Force Commander

DMV—Department of Motor Vehicle

DoD—Department of Defense

DUI—Driving Under the Influence

DWI—Driving While Intoxicated

GOV—Government Owned Vehicle

IEVC—Installation Entry/Exit Vehicle Check

LMR—Land Mobile Radios

MSF—Motorcycle Safety Foundation

NCIC—National Crime Information Center

NHTSA—National Highway Traffic Safety Administration

POV—Privately Owned Vehicle

PBT—Portable Breath Tester

RDS—Records Disposition Schedule

SSN—Social Security Number

SRBW—Suspension/Revocation/Barment/Warrant

Attachment 2

PARKING POLICIES FOR RVS AND OVERSIZE VEHICLES

A2.1. No Parking Locations. Do not park U-Hauls, camper-type vehicles, and/or boats in the BX or Commissary parking lots. Vehicle will be towed at the owner's expense.

A2.2. U-Haul or Camper Vehicles.

A2.2.1. U-Haul or camper-type vehicles that are the primary means of transportation may park as follows when the operator is staying at the lodging facility indicated and a pass has been issued by the lodging facility:

A2.2.1.1. Quarters 13; behind the quarters.

A2.2.1.2. Malmstrom or Offutt Inns; park on the west side of the Malmstrom Inn parking lot.

A2.2.1.3. Temporary Lodging Facility; park in designated space if the vehicle will fit. If the vehicle will not fit, short-term parking is available in the golf course lower lot. Park additional vehicles at the Willow Lakes golf course lower lot. Ensure a note is placed in the windshield that includes operator local location (address) and contact information, including a telephone number. Do not park in commercial strip malls – vehicles may be towed.

A2.3. U-Haul or Camper Vehicles Towing a Car.

A2.3.1. When possible, detach the car, drive it, and park the U-Haul or camper type vehicle as addressed in paragraph **A2.2 - A2.2.1.3** above.

A2.4. Towed Boats and Campers.

A2.4.1. Overnight parking (no more than 24 hours) for personnel living in Coffman Heights housing and base dormitories: Park the boat or camper in the southern most portion of the 557 WW parking lot. This will accommodate access after removal from long-term storage prior to use.

A2.4.2. Overnight parking (no more than 24 hours) for personnel living in Capehart housing: Park the boat or camper in the Willow Lakes golf course lower lot. This will accommodate removal from long-term storage prior to use. Do not park in commercial strip malls – vehicles may be towed.

A2.5. Long-term Parking. Contact the RV storage lot at 294-5564/2034 for long-term parking.

Attachment 3

RESERVED PARKING ALLOCATIONS

A3.1. General Information. Parking spaces will be reserved in minimal numbers by one of two means--automatic or by request. Automatic allocation will be based on primarily on duty positions which are limited to 4 slots. Requesting allocation will have to meet certain criteria for parking. All parking spaces must have initial validation by the Reserved Parking Board. Duplicate reserved parking slots at other than primary duty location is prohibited.

A3.2. Automatic Allocations. Automatic allocations will be based primarily on duty positions and are limited to 4 slots per Squadron/Group. Handicapped, Alert and Government vehicle parking will also fall into this category. Once initially validated by the Reserved Parking Board, these spaces will be permanently assigned. These automatic allocations consist of:

A3.2.1. Squadron/Group Commander.

A3.2.2. Squadron/Group Deputy/Vice Commander.

A3.2.3. Squadron/Group Senior Enlisted.

A3.2.4. Squadron First Sergeant/Group Visitor.

A3.2.5. Handicapped/Alert Vehicles/Government Vehicles.

A3.3. Requesting Additional Allocations. By request allocations will be based on the following criteria and require initial and annual validation by the Reserved Parking Board. By request allocations consist of:

A3.3.1. Special Needs (physically impaired employee, etc.)

A3.3.2. Customer Reserved Parking (2 hours, loading, etc.)

A3.3.3. Mission Requirements--POVs (extensive justification required; must be in a high-density parking area, supported by a validated mission need.)

A3.3.4. VIP/DV Parking. Long term allocations for VIP/DV parking is prohibited. Short term VIP/DV signage may be used only on the day(s) the VIP/DV is present on Offutt AFB.

Attachment 4

RESERVED PARKING REQUEST

Figure A4.1. Reserved Parking Request Template.

MEMORANDUM FOR 55 MSG/CD Date

FROM: (*Organization Requesting Reserved Parking Spots)*
(Include address of organization[mandatory])

SUBJECT: Reserved Parking Request

1. The (*Organization Requesting Reserved Parking Spots)* currently has the following automatic allocations assigned:

a. *(Identify # spots)* - Squadron/Group Commanders

b. *(Identify # spots)* - Squadron/Group Deputy/Vice Commander

c. *(Identify # spots)* - Squadron/Group Senior Enlisted

d. *(Identify # spots)* - Squadron First Sergeant/Group Visitor

e. *(Identify # spots)* - Handicapped

f. *(Identify # spots)* - Government Vehicles

2. Request the following additional allocations be designated:

a. *(Identify # spots)* for Customers. *Provide justification why customer parking (2-hours maximum) is required. Be specific and utilize data to substantiate the request.*

b. Special Needs: *Provide justification why additional handicapped parking is required. Be specific and identify why current numbers are insufficient.*

3. The attached map identifies requested slots and preferred locations, as appropriate. *Include a map with this information as an attachment to the request memorandum. Note: Reserved parking locations will not necessarily be the most convenient slots to entrances. Plan accordingly to place some GOVs,*

etc., away from entrances and customer/handicapped at optimum locations.

Commanders Signature Block

Attachment:

Map of Requested Parking Allocations

Attachment 5

CENTRAL VIOLATIONS BUREAU SCHEDULE H, OFFUTT AIR FORCE BASE NEBRASKA

Table A5.1. Schedule H.

VIOLATION	DESCRIPTION OF VIOLATION	COLLATERAL
NRS § 16-228	Disturbing the peace.	$150.00
NRS § 18-1741.01 & NRS § 18-1741.02	Handicapped parking infraction 2nd infraction within 1 year 3rd infraction within 1 year	$150.00 $300.00 $500.00
NRS § 28-441	Possession or use of drug paraphernalia.	$100.00
NRS § 28-523	Disposal of rubbish on property (littering).	$100.00
NRS § 53-186.01	Public consumption of alcohol.	$50.00
NRS § 60-362 & NRS § 60-3,164	Operating unregistered vehicle 31-40 days expired 41-50 days expired 51 days and over expired	 $50.00 $100.00 $200.00
NRS § 60-484	Unlicensed vehicle operator	$150.00
NRS § 60-489	Operating vehicle without license in possession	$150.00
NRS § 60-3,167	Uninsured motorist or no proof of insurance	$250.00
NRS § 60-4,108	Driving while license suspended or revoked	$225.00 $250.00
NRS § 60-6,151	Failure to yield right-of-way to emergency vehicles	$100.00
NRS § 60-6,166	Within 15 feet of a fire hydrant or in fire lane or zone	$40.00
NRS § 60-6,186 & NRS § 60-6,82.01	Exceeding the posted speed limits By 6-10 mph By 11-15 mph By 16-20 mph By 21-35 mph By 36 and over mph	 $25.00 $75.00 $125.00 $200.00 $300.00
NRS § 60-6,211.08	Public consumption & open container inside vehicle	$100.00
NRS § 60-6,212	Careless driving	$100.00
NRS § 60-6,213	Reckless driving	$250.00
NRS § 60-6,267	Child passenger restraint violation	$25.00
NRS § 60-6,270	Seatbelt law violation	$25.00
NRS § 60-6371	Muffler modification violation	$100.00
NRS § 28-806	Public indecency	$200.00

NRS § 28-905	Flee or Elude Police while operating a vehicle	$300.00
NRS § 28-1009	Cruelty to animals	$250.00
NRS § 28-1202	Concealed weapon violation	$250.00
NRS § 37-411(d)	No fishing license	$100.00
18 USC § 111(a)(1)	Assaulting, resisting, or impeding certain officers or employees	$300.00
18 USC § 113(a)(5)	Simple assault	$200.00
18 USC § 641	Theft of government property ($1,000 or less) Less than $100 Over $100, but less than $500 Over $500, but not exceeding $1,000	 $250.00 $500.00 $1,000.00
18 USC § 661	Theft of personal property ($1,000 or less) Less than $100 Less than $100 Over $100, but less than $500 Over $500, but not exceeding $1,000	 $250.00 $500.00 $1,000.00
18 USC § 1361	Willful damage to government property (Malicious Mischief)($1,000 or less) Not exceeding $1,000	$750.00
18 USC § 1382	Trespass (not associated with protest activities) for unlawful purpose	$200.00
21 USC § 844	Simple personal use drug possession	$250.00

* Note: Unauthorized parking of vehicles in spaces designated for aircraft alert forces is a violation of NRS § 60-6,166.

Attachment 6

POINT ASSESSMENT

Table A6.1. Point Assessment for Moving Violations (See Note 1).

VIOLATION	POINTS ASSESSED
Reckless driving (willful and wanton disregard for the safety of persons or property).	6
Owner knowingly and willfully permitting a physically impaired person to operate the owner's motor vehicle.	6
Fleeing the scene (hit and run)-property damage only.	6
Driving vehicle while impaired (DUI/DWI).	6
Speed contests.	6
Speed too fast for conditions.	2
Speed too slow causing potential safety hazard.	2
Failure of operator or occupants to use available restraint system devices while moving (operator assessed points)	4
Failure to properly restrain children in a child restraint system while moving. (See Note 2)	2
One to 10 miles per hour over the posted speed limit.	3
Over 10 but not more than 15 miles per hour above the posted speed limit.	4
Over 15 but not more than 20 miles per hour above the posted speed limit.	5
Over 20 miles per hour above the posted speed limit.	6
Following too close.	4
Failure to yield the right of way to emergency vehicle.	4
Failure to stop for school bus or school-crossing signals.	4
Failure to obey traffic signals or traffic instructions of an enforcement officer or traffic warden; or any official regulatory traffic sign or device requiring a full stop or yield of right of way; denying entry; or requiring direction of traffic.	4
Improper passing.	4
Failure to yield (no official sign involved).	4
Failure to yield to pedestrians in designated walkway/crosswalk.	3
Failure to yield to pedestrians in designated walkway/crosswalk when violation occurs within an active school zone, add 1 point to point assessment	4
Improper turning movements (no official sign involved).	3
Driver Distractions	3

Failure to wear an approved helmet and/or eyewear while operating or riding on a motorcycle, MOPED, or a three- or four-wheel vehicle powered by a motorcycle-like engine.	3
Improper overtaking.	3
Other moving violations (involving driver behavior only).	3
Operating radar detection devices to indicate the presence of speed recording instruments or to transmit simulated erroneous speed (prohibited on DoD installations).	3
Operating radar detection devices within an active school zone to indicate the presence of speed recording instruments or to transmit simulated erroneous speed (prohibited on DoD installations).	4
Operating an unsafe vehicle (see Note 3).	2
Driver involved in accident is deemed responsible (only added to points assessed for specific violations).	1

NOTES:

1. When two or more moving violations are committed on a single occasion, assess the points for the offense having the greater value.

2. Applies to not using or improper use of a child restraint device, i.e., car seat, infant carrier, booster seat, belt/strap modification (when required by manufacturer) etc. Assess four points when no restraint system of any kind is used.

3. Use this measure for other than minor vehicle safety defects or when a driver or registrant fails to correct a minor defect (for example, a burned out headlight not replaced within the grace period on a "Fix-It" ticket).

Table A6.2. Point Assessment for Non-Moving Violations. (See Note 1).

VIOLATION	POINTS ASSESSED
Unattended Child under 12 years of age left in vehicle. Animals are included if a danger exists to the animal (see Note 2).	6
Improper Registration (fraudulent tags).	4
Misuse of handicap decal (see Note 3).	3
Illegally parked in designated handicap area (no decal, license or placard displayed).	3
Unattended Vehicle (while running).	3
Abandoned Vehicle.	3
Improper Parking (see Note 4 and Note 5).	2
Improper Registration (expired or unregistered).	2

NOTES:
1. When two or more violations are committed on a single occasion, points may be assessed for each violation.

2. An AF Form 3545A will also be accomplished. Revocation of driving privileges for one year will be considered by the commander. Example: If children or animals were left in dangerous conditions in vehicle, i.e., in hot weather where interior temperatures may reach dangerous levels, keys left accessible to children or where conditions are deemed hazardous by a reasonable person.

3. When a vehicle has a handicap decal displayed, but the occupant is not the decal or placard registrant and is not dropping off or picking up the handicapped registrant. Also includes parking in an area designated for "Van" access only, and handicap registrant has parked another vehicle class instead.

4. Parking violations defined in accordance with Chapter 60, Motor Vehicles, NRS, and Chapter 4 of this instruction.

5. Emergency First Responder vehicles are authorized to park in any area deemed necessary to affect a response.